

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ella Mintz	Team: Squad #05	CCRB Case #: 201700112	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 01/03/2017 2:40 PM	Location of Incident: Q25 bus stop at Holly Avenue, Inside of § 87(2)(b)	18 Mo. SOL 7/3/2018	Precinct: 109		
Date/Time CV Reported Tue, 01/03/2017 5:21 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 01/03/2017 5:21 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jermaine Scott	02459	949647	109 PCT
2. POF Barbara Radosti	06875	961138	109 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jermaine Scott	Abuse: In front of the Q25 bus stop at Holly Avenue in Queens, Police Officer Jermaine Scott stopped § 87(2)(b)	A . Exonerated
B . POF Barbara Radosti	Abuse: In front of the Q25 bus stop at Holly Avenue in Queens, Police Officer Barbara Radosti stopped § 87(2)(b)	B . Exonerated
C . POM Jermaine Scott	Abuse: Inside of § 87(2)(b) in Queens, Police Officer Jermaine Scott searched § 87(2)(b)	C . Unsubstantiated
D . POM Jermaine Scott	Abuse: Inside of § 87(2)(b) in Queens, Police Officer Jermaine Scott frisked § 87(2)(b)	D . Unsubstantiated
E . POF Barbara Radosti	Abuse: Inside of § 87(2)(b) in Queens, Police Officer Barbara Radosti searched § 87(2)(b) backpack.	E . Unsubstantiated
F . POM Jermaine Scott	Abuse: Inside of § 87(2)(b) in Queens, Police Officer Jermaine Scott searched § 87(2)(b) backpack.	F . Substantiated
G . POM Jermaine Scott	Abuse: Inside of § 87(2)(b) in Queens, Police Officer Jermaine Scott threatened to arrest § 87(2)(b)	G . Unsubstantiated

Case Summary

On January 3, 2017, § 87(2)(b) filed this complaint through the CCRB's call processing system on behalf of her § 87(2)(b) son, § 87(2)(b). § 87(2)(b) did not witness the incident. On January 3, 2017, § 87(2)(b) went inside § 87(2)(b) and allegedly stole a piece of candy. The owner of the store, § 87(2)(b) (last name unknown), called 911 and Police Officers Jermaine Scott and Barbara Radosti, both of the 109th Precinct, arrived at the location. PO Scott and PO Radosti stopped § 87(2)(b) while he was waiting for his bus at the Q25 bus stop at Holly Avenue and escorted him back inside of the store (**Allegations A and B**). § 87(2)(b) friend, § 87(2)(b) also came inside of the store. § 87(2)(b) displayed a video showing § 87(2)(b) standing in front of a candy shelf and putting his hand to the candy. PO Scott asked § 87(2)(b) if he took the candy, which he denied. PO Scott allegedly took § 87(2)(b) backpack off his shoulders and handed it to PO Radosti. PO Scott allegedly searched and frisked § 87(2)(b) (**Allegation C and D**). PO Radosti allegedly handed § 87(2)(b) bag to PO Scott and said, "There's nothing there" (**Allegation E**) and PO Scott then allegedly took out books from § 87(2)(b) backpack and leafed through the pages (**Allegation F**). No candy was ever found on § 87(2)(b) person. While escorting § 87(2)(b) out of the store, PO Scott allegedly stated, "If you and your friends ever come in this store again, we're going to have to do a sweep on you" (**Allegation G**). § 87(2)(b) was not arrested or summonsed as a result of this incident.

There is no video footage pertaining to these allegations because the footage was deleted before members from the CCRB's Field Evidence Collection Unit arrived to the store. This case is being closed after 90 days because § 87(2)(b) was not interviewed for more than a month after this case was filed and because of attempts to locate and interview civilian witnesses.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- On April 14, 2017, a FOIL request was filed with the Comptroller's office; the results of this inquiry will be added to the case file upon receipt. (Board Review 01)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) (Board Review 03)
- PO Scott has been a member of service for six years and this is the first case in which he is a subject officer.
- PO Radosti has been a member of service for one year and this is the first case in which she is a subject officer.

Potential Issues

- The investigation was unable to interview witness, § 87(2)(b) because the phone number § 87(2)(b) provided for him in his interview was not in service. § 87(2)(b) told the undersigned she would be able to procure § 87(2)(b)'s parent/guardian contact information but § 87(2)(b) did not do so. § 87(2)(b) the store owner, did not want to participate in the investigation in any capacity. § 87(2)(b) (last name unknown), another employee of § 87(2)(b) provided a brief phone statement but declined to provide a verified statement.

Findings and Recommendations

Allegation A–Abuse of Authority: In front of the Q25 bus stop at Holly Avenue in Queens, Police Officer Jermaine Scott stopped § 87(2)(b)

Allegation B–Abuse of Authority: In front of the Q25 bus stop at Holly Avenue in Queens, Police Officer Barbara Radosti stopped § 87(2)(b)

The circumstances surrounding § 87(2)(b) stop are undisputed. § 87(2)(b) § 87(2)(b), walked to the bus stop, which is located approximately fifteen feet away from § 87(2)(b) § 87(2)(b) with PO Scott and PO Radosti. § 87(2)(b) pointed his finger directly toward § 87(2)(b) § 87(2)(b) and identified him as the person who allegedly stole candy. PO Scott and PO Radosti then approached § 87(2)(b) and escorted him back to the store.

PO Scott (Board Review 03) and PO Radosti (Board Review 04) both testified that they received a 911 call for a larceny in progress at the location. When they arrived, they spoke to § 87(2)(b) who told them that he had a kid on camera stealing from his store. PO Scott testified that he interacts with the store owner approximately two-three times a week because kids often steal from his store; the store owner is generally reliable in these accounts.

An officer may stop an individual when he reasonably suspects that a person has committed, is committing, or is about to commit a crime. People v. DeBour, 40 N.Y.2d 210; 352 N.E. 2nd 562 (1976.) (Board Review 05)

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C–Abuse of Authority: Inside of 46-02 Kissena Boulevard in Queens, Police Officer Jermaine Scott searched § 87(2)(b)

Allegation D–Abuse of Authority: Inside of 46-02 Kissena Boulevard in Queens, Police Officer Jermaine Scott frisked § 87(2)(b)

Allegation E–Abuse of Authority: Inside of 46-02 Kissena Boulevard in Queens, Police Officer Barbara Radosti searched § 87(2)(b) backpack

Allegation F–Abuse of Authority: Inside of 46-02 Kissena Boulevard in Queens, Police Officer Jermaine Scott searched § 87(2)(b) backpack

It is undisputed that § 87(2)(b) stated he was § 87(2)(b) brother and was allowed to stay in the store at the time of the incident. It is undisputed once inside the store, § 87(2)(b) showed a video of the alleged theft. It is undisputed that PO Scott looked inside of § 87(2)(b) backpack. § 87(2)(g)

§ 87(2)(b) testified that the video showed him touching the candy and then putting his hand in his pocket; this motion was done twice (Board Review 06). § 87(2)(b) explained that he was just pretending to take the candy and did not actually steal it. After the video was shown, PO

Scott and PO Radosti both stated, “Yeah, he took it.” PO Scott told § 87(2)(b) “Let’s get this over with” and asked him for the candy. § 87(2)(b) told PO Scott that he did not have it. PO § 87(2)(b) then went behind § 87(2)(b) and took his bag off his shoulders and gave it to PO Radosti, who took it over to the counter where the cashier is. PO Scott did not ask § 87(2)(b) if he could take his bag. § 87(2)(b) did not see what PO Radosti did with the bag. PO Scott put his hands inside both of § 87(2)(b) front jacket pockets; there was nothing in these pockets. PO Scott then did the same thing with the jacket pockets on the upper arm. PO Scott went through the two pockets of § 87(2)(b) pants; there were nothing in those pockets. PO Scott then patted him down from the top of his coat to the bottom of his legs. The search and frisk lasted approximately two minutes.

§ 87(2)(b) alleged that after PO Scott was done searching and frisking him, PO Radosti handed PO Scott his backpack and stated, “There’s nothing there.” At this point, PO Scott put the bag on the counter. PO Scott took out the books from the bag and looked through them. After two minutes, PO Scott gave § 87(2)(b) the bag back and stated, “If you have it, we can just get this over with.” § 87(2)(b) again stated that he did not have the candy. § 87(2)(b) testified that he was scared throughout the interaction.

Members of the CCRB Field Evidence Collection Unit went to § 87(2)(b) on January 10, 2017 and spoke to § 87(2)(b) (Board Review 07). § 87(2)(b) stated that one of the two officers who responded to his 911 call frisked § 87(2)(b) over his side jacket pockets. § 87(2)(b) was unsure of whether either officer searched him. However, when he displayed for the investigators what actions the officers took, he placed both of his hands into the front pockets of his jacket. § 87(2)(b) denied that any officer looked inside of § 87(2)(b) backpack. § 87(2)(b) did not want to provide phone statement or a verified statement regarding the incident.

§ 87(2)(b) § 87(2)(b) who was present for this incident, provided a phone statement; he stated that PO Scott pat over § 87(2)(b) pants and coat pockets but did not open or unzip any of his pockets (Board Review 08). PO Scott asked § 87(2)(b) to open his backpack and § 87(2)(b) complied. PO Scott looked inside the bag with his eyes but did not take anything out. § 87(2)(b) stressed that the officers did not do anything wrong. § 87(2)(b) also did not want to provide a verified statement to the investigation. As stated in the potential issues section, the undersigned was unable to establish contact with civilian witness, § 87(2)(b).

Both PO Scott and PO Radosti testified that the video showed § 87(2)(b) reaching his hand to a bin of candy and removing his hand but that the video did not show where he put the candy. Both officers reached the conclusion that § 87(2)(b) had taken something after seeing the video. PO Scott and PO Radosti testified that PO Scott asked § 87(2)(b) multiple times where the candy was and he responded that he only pretended to take it. None of the store employees ever told the officers that they saw § 87(2)(b) put the candy in any of his pockets or in his backpack. Both officers testified that PO Scott asked § 87(2)(b) if he could look inside of his backpack and § 87(2)(b) agreed. PO Scott unzipped the backpack and looked inside of it. Neither officer recalled if PO Scott ever handed the backpack to PO Radosti or if she searched it. They did not recall if PO Scott removed § 87(2)(b) backpack from his shoulders or if he removed anything from the backpack.

PO Radosti testified that because PO Scott was her field training officer, she just observed him. PO Radosti did not recall PO Scott going through any of § 87(2)(b) pockets or patting him down at any point.

PO Scott testified that he did not recall searching § 87(2)(b) PO Scott did not recall if he frisked § 87(2)(b) PO Scott did not recall unzipping any of § 87(2)(b) jacket or pants pockets. In his initial narrative, PO Scott mentioned that at one point, § 87(2)(b) flipped out his pants pockets. PO Scott later stated that he did not recall if this happened. PO Scott did not recall if he asked § 87(2)(b) to flip his pockets out. PO Scott did not recall if he ever recovered any objects from § 87(2)(b) jacket pockets. PO Scott did not recall if he ever went through § 87(2)(b) pants pockets. PO Scott never feared for his safety. Nothing about § 87(2)(b) made PO Scott believe that he possessed a firearm. PO Scott stated that someone has to see § 87(2)(b) physically leave the store with merchandise in order for it to be considered stolen. Because nobody saw § 87(2)(b) do this, he could not have been arrested for stealing. Even if § 87(2)(b) had stolen the merchandise, PO Scott most likely would not have arrested him due to his age and would have taken a juvenile report. PO Scott testified that he did not “search search” § 87(2)(b) backpack but unzipped it and looked inside. PO Scott did not recall leafing through any of § 87(2)(b) books.

An officer may frisk an individual when he reasonable suspects that he is in danger of physical injury by virtue of the detainee being armed. An officer must have probable cause to perform a search of a person. People v. DeBour, 40 N.Y.2d 210; 352 N.E. 2nd 562 (1976.)

§ 87(2)(g)
It is therefore recommended that **Allegations C and D** be closed as **unsubstantiated**.

According to People v. Diaz, 107 A.D.3d 401 (2013), officers are not permitted to routinely search the bags of an individual unless they are under arrest. In order to conduct a lawful search, the individual must pose a threat of violence or there must be indications that the individual is armed or that the bag contains evidence. Furthermore, the bag must be in immediate possession of the individual. (Board Review 09) An officer must have founded suspicion that criminality is afoot to request to search an individual’s belongings. People v. Hollman, 79 N.Y. 2d 181 (1992) (Board Review 10)

§ 87(2)(g)
it is recommended that **Allegation E** be closed as **unsubstantiated**.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation F** be closed as **substantiated**.

Allegation G—Abuse of Authority: Inside of 46-02 Kissena Boulevard in Queens, Police Officer Jermaine Scott threatened to arrest § 87(2)(b)

§ 87(2)(b) testified that after PO Scott handed him his backpack back, he asked the owner of the store what he wanted to do with § 87(2)(b). The owner said to tell him not to come in the store again. At this point, PO Scott stated, “If you and your friends ever come in this store again, we’re going to have to do a sweep on you.” § 87(2)(b) took that to mean that PO Scott would have to take him to the precinct.

§ 87(2)(b) stated that he did not hear any officer threaten to arrest § 87(2)(b) but qualified this by saying that he speaks limited English so if he did hear a threat of arrest, it is possible he did not understand it.

Both PO Radosti and PO Scott testified that the store owner told § 87(2)(b) that he did not want to see him in his store anymore. They both denied that PO Scott stated, “If you and your friends come in this store again, we’re going to have to do a sweep on you.” Both PO Radosti and PO Scott did not know what doing a “sweep” entailed and have never heard this expression.

§ 87(2)(g) [REDACTED]
[REDACTED] It is therefore recommended that **Allegation G** be closed as **unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date